Bylaws of Mensa Sweden - English version

Last updated by the General Meeting in 2024

Table of content

Table of content 2

1 General guidelines 5
1.1 The purpose of Mensa 5
1.2 The activities of Mensa 5
1.3 Mensa and the human community 5
1.4 Opinions and actions in the name of Mensa 5
1.5 Opinions of individual members 5
1.6 Non-profit statement 5
1.7 Bylaws 5
1.8 Constitution of Mensa International 5
1.9 Obligations to Mensa International 5
1.10 The use of Mensa's name and logotype 5
1.11 Authorized signatories 6

2 Membership 6
2.1 Eligibility for membership 6
2.2 Membership conditions 6
2.3 Consequences of non-payment of dues 6
2.4 Member in good standing 6
2.5 Membership rights and privileges 6
2.6 Publication of membership 6
2.7 The use of information about the members 6
2.8 Services to Mensa members who are not members of Mensa Sweden 7

3 Administration and officers 7
3.1 Governing, executive, examining and advising bodies 7
3.1.1 The General Meeting 7
3.1.2 The Board 7
3.1.3 The Election Committee 7
3.1.4 The Auditor 7
3.1.5 The Ombudsman 8
3.1.6 Vice ombudsman 8
3.1.7 The Immediate Past Chairperson 8
3.2 Paid Administrator(s) 8
3.3 Archive 8
3.4 Elected members of the Board and their duties 8
3.4.1 Chairperson 9
3.4.2 Vice Chairperson 9
3.4.3 Financial Officer 9
3.4.4 Secretary 9
3.4.5 Activity Officer 9
3.4.6 Membership Officer 9
3.4.7 Test Officer 9
3.4.8 Deputies 9
3.5 Appointed officers and their duties 10
3.5.1 Editor 10
3.6 Other mandatory offices 10
3.6.1 Test Psychologist 10
3.7 Qualification of officers 10
3.7.1 Election Committee 10

3.7.2 Auditor 10
3.7.3 Ombudsman..... 10
3.8 No payment to officers.....10
3.9 Terms of office 10
3.9.1 Board members 10
3.9.2 Appointed officers 11
3.9.3 Election Committee.....11
3.9.4 Auditor 11
3.9.5 Ombudsman.....11
3.9.6 Immediate Past Chairperson.....11
3.10 Removal from office 11
3.10.1 Board members 11
3.10.2 Appointed officers 11
3.10.3 Other elected officers 12
3.11 Filling of vacancies.....12
3.11.1 Handling vacancies in the Board..... 12
3.11.2 Ombudsman..... 12
3.11.3 Appointed officers 12
3.11.4 Other elected officers..... 12
3.11.5 Election committee and vacancies 12

4 Sessions and meetings..... 13
4.1 Definitions 13
4.1.1 Session 13
4.1.2 Meeting..... 13
4.2 Attendance 13
4.2.1 Voluntary..... 13
4.2.2 Mandatory..... 13
4.3 Rules of order.....13
4.4 Board meetings 13
4.4.1 Frequency 13
4.4.2 Calling procedure 13
4.4.3 Requirement for constituting a quorum 14
4.4.4 Accessibility 14
4.4.5 Deputies serving when a board member is absent 14

5 The General Meeting..... 14
5.1 General information about General Meetings 14
5.2 Regulations for the ordinary General Meetings.....14
5.2.1 Frequency 14
5.2.2 First notification 14
5.2.3 Second notification 14
5.2.4 Motions 15
5.2.5 Advisory resolutions 15
5.2.6 The reports and plans of the Board 15
5.2.7 Economical issues..... 15
5.2.8 Agenda..... 15
5.3 Extraordinary General Meetings.....16
5.3.1 General Information 16
5.3.2 Announcement..... 16
5.3.3 Notification..... 16
5.3.4 Agenda..... 16
5.4 Nomination regulations for elections 16
5.4.1 Inviting nominations 16
5.4.2 Nominating procedure 17
5.4.3 Uncontested nomination 17
5.5 Balloting regulations.....17
5.5.1 Voting list 17

5.5.2 Eligibility for voting ... 17
5.5.3 Requirement for constituting a quorum ... 17
5.5.4 Simple majority ... 17
5.5.5 Anonymity ... 17
5.5.6 Digital voting ... 17
5.5.7 Use of ballots ... 18
5.5.8 Ballot contents and design for elections ... 18
5.5.9 Ballot contents and design for referenda ... 18
5.5.10 Ballot distribution ... 18
5.5.11 Use of election ballots at General Meetings ... 18
5.5.12 Reception of postal ballots before the General Meeting ... 18
5.6 Counting of votes ... 18
5.6.1 Responsibility ... 18
5.6.2 Results of postal voting ... 18
5.6.3 Single Transferable Vote ... 18
5.6.4 Balloting observers ... 19
5.6.5 Certification and notification ... 19

6 Local groups ... 19
6.1 Establishment of local groups ... 19
6.2 Association with the Board ... 19
6.3 Economy ... 19
6.4 Geographic area ... 19
6.5 Changes in bylaws for a local group. ... 19

7 Dispute resolution ... 19
7.1 Disputes between members of Mensa Sweden ... 19
7.2 Sanctions ... 20
7.2.1 Suspension ... 20
7.2.2 Expulsion and longer suspensions ... 20
7.2.3 Special inquiry ... 20
7.2.4 Appeal of decision about expulsion or longer suspension ... 20
7.2.5 Publication ... 21
7.2.6 Address an expulsion again ... 21
7.3 Settlement by Duel ... 21
7.4 Ombudsman ... 21
7.5 Responsibility of the Board ... 21

8 Amendments ... 21
8.1 Amendment procedure ... 21
8.1.1 Basic requirement ... 21
8.1.2 Proposal procedure ... 21
8.2 Amendment approval ... 21
8.3 Compliance with IBD requirements ... 21
8.4 Compliance between Swedish and English versions ... 22

9 Dissolution of Mensa Sweden ... 22
9.1 Voluntary dissolution ... 22
9.1.1 Basic requirement ... 22
9.1.2 Procedure for motions of dissolution ... 22
9.2 Liquidation ... 22
9.3 Involuntary dissolution ... 22
9.3.1 Basic requirement ... 22
9.3.2 Powers and duties of the Board ... 22

1 General guidelines

1.1 The purpose of Mensa

Mensa's purposes are to identify and foster human intelligence for the benefit of humanity; to encourage research in the nature, characteristics, and uses of intelligence; and to provide a stimulating intellectual and social environment for members.

1.2 The activities of Mensa

Mensa provides a forum for intellectual exchange among members. Its activities may include, but are not limited to, the exchange of ideas by lectures, discussions, journals, Special Interest Groups, and local, regional, national and international gatherings; the investigation of members' opinions and attitudes; and assistance to researchers, inside and outside of Mensa, in projects dealing with intelligence and Mensa.

1.3 Mensa and the human community

Intelligence should be used for the benefit of humanity. Therefore Mensa shall have no aim which is to the disadvantage of humanity.

1.4 Opinions and actions in the name of Mensa

Mensa encompasses members representing many points of view. Consequently, Mensa as an organization shall not express an opinion as being that of Mensa, take any political action, or have any ideological, philosophical, political or religious affiliation. Publication of the results of Mensa's investigations is not a political action.

1.5 Opinions of individual members

Members or groups of members may express opinions as members of Mensa, provided that they make it clear that their opinions are not expressed as being those of Mensa as an organisation.

1.6 Non-profit statement

Mensa is a non-profit society.

1.7 Bylaws

The bylaws shall be interpreted according to the laws of Sweden. Also see rules for additions to these bylaws.

1.8 Constitution of Mensa International

Mensa Sweden adheres to the constitution of Mensa International, except where its provisions conflict with Swedish law.

1.9 Obligations to Mensa International

Mensa Sweden is affiliated with Mensa, an unincorporated international society, and with its constituent member groups; as an affiliate, Mensa Sweden uses the name "Mensa" and its emblem with the permission of Mensa and Mensa International Limited (MIL), the legal owner of the name and mark. As a National Mensa, Mensa Sweden will contribute to the funding of international Mensa by paying an appropriate portion of its income to MIL in accordance with policies adopted by Mensa's International Board of Directors (IBD).

1.10 The use of Mensa's name and logotype

All Mensa Sweden members and officers must follow those rules and guidelines established by Mensa International concerning the use of the name Mensa and Mensa's logotype. The unpermitted use of Mensa's name and logotype may be regarded as an act inimical to Mensa.

1.11 Authorized signatories

The society's Chairperson and Financial Officer are both authorized signatories separately. Two or more of the other Board members signing together are also authorized signatories.

2 Membership

2.1 Eligibility for membership

Persons who have obtained a score within the upper two percent of the general population on an intelligence test that has been approved by the International Supervisory Psychologist and that has been properly administered and supervised shall be eligible for membership. There shall be no other qualification or disqualification for initial membership eligibility.

2.2 Membership conditions

As conditions of membership, members must:

- Agree to abide by these Bylaws of Mensa Sweden.
- Pay the membership dues of Mensa Sweden.
- Abide by the Constitution of Mensa International to the extent permitted by law.
- Abide by the resolutions of Mensa International to the extent permitted by law.
- Permit their names and addresses to be published internally in duly authorised directories and listings.

2.3 Consequences of non-payment of dues

A member's failure to pay dues as provided above will constitute resignation of membership.

2.4 Member in good standing

A member in good standing shall be a person who has accepted an offer of membership, has paid all dues owed, and is not currently subject to any sanction imposed by the Board or General Meeting of Mensa Sweden, or by the International Board of Directors.

2.5 Membership rights and privileges

Every member shall have the same rights and privileges accorded to every other member wit- hout qualification or limitation.

2.6 Publication of membership

The membership of Mensa Sweden is regarded as a private matter which, without the prior consent of the member in question, may not be revealed to other persons than members in good standing. Distributing such information without consent may be regarded as an act inimical to Mensa.

2.7 The use of information about the members

The officers of the society have the right to use registered information about the members when this is required for duties included in their officership. All members in good standing have the right to use published information about members for private use. Any other use than the above mentioned requires the written permission of the General Meeting or the Board.

2.8 Services to Mensa members who are not members of Mensa Sweden

Members of Mensa in other countries than Sweden, or Direct International Members may, upon payment of an annual service fee determined by the Board, have access to services and benefits that are open to members of Mensa Sweden.

3 Administration and officers

3.1 Governing, executive, examining and advising bodies

3.1.1 The General Meeting

The General Meeting of Mensa Sweden is the highest governing body of the organisation. National referenda can be held only according to the rules of a general meeting, see §5.

Elections of key officers and referenda covering important issues like ratifying the annual budget and financial reports are executed at the General Meeting and by postal ballot in combination. See further below for details about the General Meeting.

3.1.2 The Board

The Board of Mensa Sweden is the second highest governing body of Mensa Sweden, and is responsible for the management of Mensa Sweden. The Board, which is elected at a General Meeting, enters upon office immediately after the General Meeting. It executes national issues that have been or shall be considered by the General Meeting. The Board appoints officers to carry out certain duties, and these may appoint their own sub-committees. The Board shall make sure that the finances of the society are in balance and that the budget that is ratified by the General Meeting is not substantially exceeded. The Board does have the right however, to use the surplus of the budget in a way that on each occasion is found the most appropriate for Mensa Sweden and is in accordance with the Bylaws. Se further below for details about the Board members.

3.1.3 The Election Committee

The Election Committee is an independent executive body which responsibility is to organise all elections and referenda, normally in connection with a General Meeting. The Election Committee consists of 3 three members, and elects from its midst an Election Supervisor for each appropriate occasion. The Election Committee shall be responsible for the conduct of all elections and referenda, following the provisions in these Bylaws. The Election Committee announces whatever rules and regulations it shall deem necessary, setting out the format and procedure for nominating candidates, preparing ballots and distributing proper information to the voters.

The Election Committee shall verify that the nominees have an understanding of the tasks of the position they are seeking and that the nominees have knowledge of Mensa Sweden's bylaws as well as about the responsibilities of the board.

The election committee shall check that the candidates are members in good standing at the time of the annual meeting.

3.1.4 The Auditor

The Auditor is an examining body where economic issues are concerned. The Auditor's main responsibility is to audit the financial reports given by the Financial officer before the General Meeting. Other responsibilities include, but are not limited to, monitoring the budget process and other economical issues, as well as the financial actions of the Financial officer, to ensure that they are in keeping with the intentions of the membership, these Bylaws of Mensa Sweden, the Constitution of Mensa and Swedish laws.

3.1.5 The Ombudsman

The Ombudsman is an examining body with respect to all other offices, and is also responsible for ensuring that Mensa Sweden conducts its business in compliance with the Constitution of Mensa International, as well as these Bylaws. Further duties of the Ombudsman are to mediate, counsel, criticise arbitrary or improper action of officials, and arbitrate disputes within Mensa Sweden. The ombudsman shall seek to maintain a neutral role. The Ombudsman shall gather facts and evidence relating to any dispute or accusation, and make sure that every member concerned is fairly heard. The ombudsman shall report to all parties concerned, and make recommendations of further actions to the board when he/she deems appropriate.

3.1.6 Vice ombudsman

The Vice Ombudsman will assist the Ombudsman and, in absence of the Ombudsman, will perform the duties of the Ombudsman.

3.1.7 The Immediate Past Chairperson

The Immediate Past Chairperson, if a member in good standing and not under any form of sanction, will normally assist the Board in an advisory capacity. This also applies to former Past Chairperson, in case they are members in good standing, not under any form of sanction and willing to serve.

3.2 Paid Administrator(s)

Mensa Sweden may hire a paid Executive Director (and other paid staff) if approved by the General Meeting. Such paid staff will report to the Board. Paid staff is not eligible for serving as a board member, volunteer officer or as a member of any Mensa Committee.

3.3 Archive

The board shall hold an archive for the most relevant documents regarding board decisions, elections and referenda, economy, membership activities and legal documents. The archive shall include, but is not limited to:

- bylaws and subdocuments
- minutes of board meetings
- board decisions still in effect
- minutes from general annual meeting
- General meeting decisions still in effect
- The Ombudsman's reports
- national membership publications (Legatus Mensae)
- publication of all formal election material
- material concerning referenda
- annual membership lists
- contracts
- end of year financial documents

3.4 Elected members of the Board and their duties

The Board consists of seven (7) voting members elected from the membership. These may not serve as elected or appointed officers in Mensa Sweden nor in any of its local groups. Participation in all Board meetings and Board sessions is mandatory for all of these officers, and they all have the right

to speak and forward issues at such occasions. The Board members are listed below, and their duties include, but are not limited to, those mentioned here.

3.4.1 Chairperson

The Chairperson shall be the chief executive officer of Mensa Sweden, and will normally preside at Board and General meetings of Mensa Sweden. The Chairperson is responsible for the overall conduct of the Board in managing the affairs of Mensa Sweden, including, but not limited to ensuring compliance with these Bylaws.

The Chairperson is responsible for the communication with other National Mensa organisations, and represents Mensa Sweden on important occasions within Sweden.

The Board may specify further responsibilities of the Chairperson in a separate sub-document.

3.4.2 Vice Chairperson

The Vice Chairperson will assist the Chairperson and, in absence of the Chairperson, will perform the duties of the Chairperson, and perform such other duties as may be assigned by the Board. The Board may specify further responsibilities of the Vice Chairperson in a separate subdocument.

3.4.3 Financial Officer

The responsibility of the Financial Officer includes, but is not limited to, all financial recor- ding and reporting, including the presentation of a semi-annual financial report accessible to all members, the presentation of the annual financial report at the Annual General Meeting and putting together a budget for each fiscal year, which shall be approved by the General Meeting. The Board may specify further responsibilities of the Financial Officer in a separate sub-document.

3.4.4 Secretary

The responsibility of the Secretary includes, but is not limited to, taking care of all official minutes and official correspondence, causing the Annual report of the Board to be written and presented at the Annual General Meeting and controlling all use of the name Mensa name and Mensa's logotype in Sweden. The Board may specify further responsibilities of the Membership Officer in a separate sub-document.

3.4.5 Activity Officer

The responsibility of the Activity Officer includes, but is not limited to, acting as a liaison between the Board and the Local Groups and establishing information channels between those arranging activities and the members. The Board may specify further responsibilities of the Activity Officer in a separate sub-document.

3.4.6 Membership Officer

The responsibility of the Membership Officer includes, but is not limited to, ensuring that the membership administration and the member service is done in an efficient and safe way.

The Board may specify further responsibilities of the Membership Officer in a separate sub-document.

3.4.7 Test Officer

The responsibility of the Test Officer includes, but is not limited to, ensuring the function of the test organisation and following up on the work done by the National Supervisory Psychologist

The Board may specify further responsibilities of the Test Officer in a separate sub-document.

3.4.8 Deputies

The Board shall have two (2) deputies. Each year one (1) deputy is elected for a term of two (2) years.

3.5 Appointed officers and their duties

The Board may appoint other officers, based on the necessity of the society on each occasion. The Board has the right to terminate such appointed officerships not indicated as mandatory. The offices mentioned below are mandatory, unless otherwise specified.

3.5.1 Editor

The Editor shall abide by the "Rights and duties of the editors" and statements from the "Committee for Press Conduct" and is responsible for publishing a national membership publication that meets the conditions set by the IBD and the Board of Mensa Sweden. The Board may specify further responsibilities of the Editor in a separate sub-document.

3.6 Other mandatory offices

3.6.1 Test Psychologist

The Test Psychologist is responsible for approving (controlling) all ability tests that are administered by Mensa Sweden, and shall abide by the regulations set by the International Supervisory Psychologist. The Board may specify further responsibilities of the Test Psychologist in a separate sub-document. The Test Psychologist does not have to be a member of Mensa Sweden.

The Test Psychologist is not affected by the regulations in §3.9.2 regarding terms of office for appointed officers.

3.7 Qualification of officers

All officers, elected or appointed, must be members in good standing of Mensa Sweden.

3.7.1 Election Committee

No member of the Election Committee shall be a present member of the Board, nor a candidate for election to the next Board.

3.7.2 Auditor

The Auditor shall not be a present member of the Board.

3.7.3 Ombudsman

The Ombudsman shall not simultaneously hold any other elected or appointed offices in Mensa Sweden.

3.8 No payment to officers

Mensa's Board members shall not be paid by Mensa Sweden. All officers may except reimbursement of reasonable and necessary expenses incurred in Mensa businesses.

3.9 Terms of office

3.9.1 Board members

Members of the Board are elected for two (2) -year terms, alternating so that every second year the Chairperson, the Secretary, the Membership Officer and the Activity Officer are elected, and in the intervening years the Vice Chairperson, the Test Officer and the Financial Officer are elected. This is to ensure preservation of continuity in the Board.

No member of the Board may serve in the same elected office for more than three (3) consecutive terms. They may however serve for more than three nonconsecutive terms.

3.9.2 Appointed officers

Appointed officers are appointed for one year at a time, from the 1st of January to the 31st of December. They can keep their posts for at most six consecutive periods.

3.9.3 Election Committee

The General Meeting elects a member of the Election Committee for a term of office of three (3) years, such that one of the members of the Election Committee is elected every year. The members of the Election Committee may be re-elected for up to three (3) consecutive terms.

3.9.4 Auditor

The General Meeting elects the Auditor for a term of office of 3 (three) years. The Auditor may be re-elected for up to 3 (three) consecutive terms.

3.9.5 Ombudsman

The General Meeting elects the Ombudsman for a term of office of three (3) years. The Ombudsman may be re-elected for up to three (3) consecutive terms.

The General Meeting elects the Vice Ombudsman for a term of office of three (3) years. The Vice Ombudsman may be re-elected for up to three (3) consecutive terms.

3.9.6 Immediate Past Chairperson

The Immediate Past Chairperson serves in this capacity for as long as deemed necessary and/or advisable by that person and the current Board.

3.10 Removal from office

3.10.1 Board members

Board members may be removed individually or collectively from office by reason of resignation, death, and inability to serve.

A board member who resigns within a year, before the first notification of the general meeting, may choose to resign with delay. A by-election will then take place in accordance with 3.11.1. The board member who resigned will continue on his position until the following general meeting.

The General Meeting may remove any or all Board members by a 2/3-majority vote of no confidence, passed as a referendum stating the outcome of a fair hearing for the person(s) concerned.

A Board member may be suspended from office with immediate effect by unanimous vote from the remaining Board members. If such action is taken, an Extraordinary General Meeting shall be called without undue delay.

If less than 3 (three) board members remain, the board is considered defunct and cannot act until the Extraordinary General Meeting.

3.10.2 Appointed officers

Appointed officers may be removed individually or collectively from office by reason of resignation, death, and inability to serve. Any appointed officer may, after having had an opportunity of a fair hearing, be removed from office by the Board with four (4) weeks notice to the affected appointed officer. Such removal shall require a 3/5 vote of the full membership of the Board. Inappropriate removal of an appointed officer may constitute a reason for removal of the entire Board by the General Meeting, as provisioned above. An appointed officer may be suspended awaiting appropriate removal by a unanimous vote of the board. The removal of an office, from an elected or appointed officer due to a Board decision, which will not return before the next Annual General Meeting, will constitute immediate resignation of officership without the need of a hearing or similar.

3.10.3 Other elected officers

Other elected officers may be removed individually or collectively from office by reason of resignation, death, and inability to serve. The General Meeting may remove any or all other elected officers by a 2/3-majority vote of no confidence, passed as a referendum stating the outcome of a fair hearing for the person(s) concerned. Other elected officers may be suspended awaiting removal by a unanimous vote of the board. The Immediate Past Chairperson cannot be removed per definition, but the current Board may terminate the co-operation with such person(s), if deemed necessary.

3.11 Filling of vacancies

3.11.1 Handling vacancies in the Board

Vacancies in the Board are handled for the time up until the next General Meeting where an election can take place.

If a vacancy occurs in the position of Chairperson, the Vice Chairperson will fill the position up until an election can take place. Then the Vice Chairperson returns to his position for the rest of his term.

If there are deputies, the board will appoint one of them to fill the vacant position up until an election can take place. Then the deputy returns to his position for the rest of his term.

If there are no deputies, the board may appoint an electable member to fill the vacant position for the time period until next general meeting.

If a deputy position becomes vacant the Board may appoint a deputy for the time up until an election can take place.

If any of the board members have resigned with delay in accordance with 3.10.2 before the first notification of a general meeting, the position shall be announced for the remainder of the term of office, instead of being filled by the vice chair or deputy. This shall be conducted in the same manner as the regular elections. If any of the positions as deputy is vacant at the first notification of a general meeting it shall be announced for the remainder of the term of office.

3.11.2 Ombudsman

If a vacancy occurs in the position of Ombudsman, the Vice Ombudsman will fill the position up until an election can take place. Then the Vice Ombudsman returns to his position for the rest of his term.

3.11.3 Appointed officers

The Board may fill any vacancy among the Appointed Officers, by appointing a replacement that will hold office until the expiration of the term of the replaced officer.

3.11.4 Other elected officers

Any vacancy among the other elected officers may be filled by the General Assembly, by electing a replacement that will hold office until the expiration of the term of the replaced officer. Such elections will be held according to the regular election rules.

The General Assembly may also elect Deputy Officers for the offices of Auditor that will automatically fill a vacant office for the remainder of that term.

3.11.5 Election committee and vacancies

In the case of a vacancy in the Election Committee, it may nominate candidates with less than its usual number of members. If all three positions in the Election Committee are vacant, the Board shall execute the duties of the Election Committee until a new Committee has been elected.

The General Assembly may also elect Deputy Officers for the Election Committee that will automatically fill a vacant office for the remainder of that term.

Vacancies in the Election Committee are handled for the time up until the next General Meeting where an election can take place.

If a deputy position becomes vacant the Election Committee may appoint a deputy for the time up until an election can take place.

4 Sessions and meetings

4.1 Definitions

4.1.1 Session

A "session" is defined as an exchange of communication and votes, which may be de-localised in time and space. In other words, a session may take place over an extended period of time, and the different participants do not need to be at the same location during this time interval. The Board may specify further regulations dealing with, but not limited to the time interval, authentication of participants and methods of communication for sessions in a separate sub-document.

4.1.2 Meeting

A "meeting" is defined by simultaneous physical presence of all participants. In other words, a meeting is a session that takes place at a specified location and at a specified time interval, normally not more than a few hours.

4.2 Attendance

4.2.1 Voluntary

Any Mensa member in good standing may attend any business session, official activity or function of Mensa Sweden, but may not vote or hold office unless that member is a member of Mensa Sweden. Members may attend social Mensa functions, but only in compliance with the rules of the host person or group.

4.2.2 Mandatory

A mandatory session implies that attendance is required of all the members who are called for. If a member cannot be present at the session, this member is obliged to inform the chairperson of that session in due time.

4.3 Rules of order

All Mensa meetings may adopt their own rules of order. The Board may provide a separate sub-document containing guidelines for rules of order regarding all meetings of Mensa Sweden, that each meeting may then choose to follow.

4.4 Board meetings

4.4.1 Frequency

Board meetings are held when needed, with a minimum of five (5) Board meetings in a calendar year. One of these Board meetings shall be held within one (1) week from the Annual General Meeting

4.4.2 Calling procedure

The Chairperson calls Board meeting. The Chairperson is obliged to call a board session when requested to do so by any member of the board. Should the Chairperson, for any reason, fail to call a board session within 4 (four) weeks from a request, the vice Chairperson should call a board session. Board sessions shall be called with at least 2 two weeks' notice.

4.4.3 Requirement for constituting a quorum

A simple majority among at least four (4) voting Board members shall constitute a quorum for all Board meeting, except when specifically stated otherwise in these Bylaws.

The Board is not authorised to execute or approve any action on behalf of Mensa Sweden without proper majority.

4.4.4 Accessibility

Board sessions shall be open to any member in good standing. Only members of the Board have the right to vote, deputies have the right to speak and to place motions, others may speak with the specific permission from the chairperson for that meeting. If any special reason exists, and the Ombudsman have given previous permission for it, the Board has the right to handle, discuss, investigate and prepare matters in chamber, provided that relevant and adequate information is presented for the members as soon as a referendum is going to take place. The members concerned shall have the possibility of getting their questions answered in the matter, provided that this will not imply leaving out information that might cause unnecessary harm to another member.

4.4.5 Deputies serving when a board member is absent

If any board member is absent from a meeting, then a deputy serves in his place. The deputy becomes a board member during the meeting with the right to vote. The right to serve apply regardless of the reason for a board member to be absent. Deputies serve in the order they were elected.

5 The General Meeting

5.1 General information about General Meetings

The General Meeting is the highest governing body of Mensa Sweden. All the referrals to the General Meeting made in these Bylaws apply to both the annually and extraordinary General Meetings, unless otherwise is specified. All the General Meetings of Mensa Sweden shall be held within the borders of Sweden.

The General Meeting may give permission to other persons than members in good standing to attend the meeting.

5.2 Regulations for the ordinary General Meetings

5.2.1 Frequency

Ordinary General Meetings for all members of Mensa Sweden shall be held annually between April 15 and June 15.

5.2.2 First notification

An Annual General Meeting shall be called by notification to all members in good standing at least sixteen (16) weeks before its date. This notification shall specify the date and location, and invite all members in good standing to forward referendum issues and nominate election candidates.

5.2.3 Second notification

The meeting agenda of all Annual General Meetings shall be specified by a second notification to all members in good standing, at least four (4) weeks before the Annual General Meeting. This notification shall contain all relevant background documentation and postal ballots for the issues on the agenda.

5.2.4 Motions

Motions submitted no later than ten (10) weeks preceding announced meeting shall be included in the agenda. Motions submitted after this date shall not be taken into consideration. All motions submitted on time shall be presented in the notification of a meeting. Motions concerning changes of the bylaws are included in the notification of the meeting only if they have been signed by at least 50 members in good standing of Mensa Sweden.

The Board has the right to put forward counterproposals and write a recommendation in connection with a motion text.

The mover has the right to withdraw his/her motion until the time of the voting at the General Meeting. A motion shall always be withdrawn if the mover no longer is a member at the time of the voting at the General Meeting.

5.2.5 Advisory resolutions

At a General Meeting, the members who are present have the opportunity to forward and pass advisory resolutions. This can be done by presenting an advisory motion to the meeting's chairperson before the meeting begins to deal with the item "Referendum on advisory resolutions " on the agenda.

Advisory motions are the only actions that can be put on the agenda at the time of the General Meeting. Advisory resolutions are not binding and should only be considered recommendations.

5.2.6 The reports and plans of the Board

The Board shall for every Annual General Meeting present an activity report, a financial report for the previous year and a budget and activity plan for the current year. Should the Annual General Meeting choose not to approve one or several of these documents or if discharge is not granted for the Board, an extraordinary General Meeting shall immediately be announced, during which the disapproved issues will be brought up again.

5.2.7 Economical issues

The membership dues and the testing fee may only be changed by a 2/3 majority passed as a referendum.

5.2.8 Agenda

The agenda of the Annual General Meeting shall include, but is not limited to, the following:

1. Ratification of Notification.
2. Ratification of the Agenda.
3. Confirmation of electoral register.
4. Ratification of the Board's activity report for the previous year.
5. Ratification of the Board's audited financial report for the previous year.
6. The question of discharge of the Board for previous year.
7. Ratification of the budget for the current year.
8. Ratification of the Board's activity plan for the current year.
9. Election for vacant offices of the Board.
10. Election for the office of one member of the Election Committee.
11. Election for the office of Auditor, when necessary.
12. Election for the office of Ombudsman and/or Vice Ombudsman, when necessary.

13. Election for deputies.
14. Referendum for amendment proposals for the bylaws, if any.
15. Referendum for the proposals put forward by the Board, if any.
16. Referendum for the submitted motions, if any.
17. Referendum on advisory resolutions, if any.

5.3 Extraordinary General Meetings

5.3.1 General Information

An extraordinary General Meeting can be announced if election of officers and/or referenda must take place or if a decision has to be made in another matter of great importance at another time than that of the Annual General Meeting. An extraordinary General Meeting must not take place during the period of eight (8) weeks prior to four (4) weeks after the Annual General Meeting. An extraordinary General Meeting must neither be announced for a time scheduled after the next Annual General Meeting nor if an extraordinary General Meeting has already been announced.

5.3.2 Announcement

The Board, Auditor or Ombudsman may call an extraordinary General Meeting. An extraordinary General Meeting shall be announced if at least 10 % of all members in good standing sign a petition. An extraordinary General Meeting can also be announced by a General Meeting.

5.3.3 Notification

The meeting agenda of an extraordinary General Meeting shall be specified by a notification to all members in good standing, at least four (4) weeks before the meeting. This notification shall include all necessary information.

5.3.4 Agenda

The agenda of the extraordinary General Meeting shall include, but is not limited to, the following:

- Ratification of notification.
- Ratification of the Agenda.

Besides the above mentioned, the agenda of the extraordinary General Meeting can include, but is not limited to, the following:

- Hearings for officers or other members having disputes.
- Advisory resolutions.
- Election for officers.
- Passing referenda.

The last two actions may only take place if the notification includes a postal ballot in compliance with the regulations and provisions of these Bylaws and of the Election Committee.

5.4 Nomination regulations for elections

5.4.1 Inviting nominations

The Election Committee shall cause to be published, no later than sixteen (16) weeks preceding the Annual General Meeting or the extraordinary General Meeting at which an election is to be held, a notice to members inviting nominations for the officers to be elected. This notice shall be sent to all members. This notice shall specify that nominations must be submitted to the Election Committee

no later than ten (10) weeks preceding the General Meeting in question and where they must be sent.

5.4.2 Nominating procedure

It is the responsibility of the Election Committee to make sure that there is at least one nominee for each vacant office, if necessary by nominating candidate for the appropriate offices themselves, following the provisions below. Members may nominate themselves or other members as a candidate or a team of candidates for any and all offices. This shall happen by submitting the names of such candidates to the Election Committee, together with evidence that each candidate has accepted the nomination. Nomination petitions must be signed by at least two (2) members in good standing, or by a member of the Election Committee.

The petitions and acceptance of nominations shall follow the format described by the Election Committee.

5.4.3 Uncontested nomination

If only one candidate has been validly nominated for an office, the Election Committee shall declare that candidate elected, and inform the members about this on the ballot.

5.5 Balloting regulations

5.5.1 Voting list

In order for an Annual General Meeting or an extraordinary General Meeting to be considered duly convened, a voting list must be prepared. The voting list must contain the names of all present members entitled to vote, the names from approved postal votes and the names of those who have voted digitally.

Only those members included in the voting list have the right to vote, speak or forward referendum issues. The voting list shall be based on the current information about the members.

The Election Committee is responsible for appointing an independent group (which may include members of the Election Committee) responsible for preparing the voting list.

5.5.2 Eligibility for voting

All members in good standing, based on the above mentioned voting list, may cast one vote in each issue. Attempts to cast more than one vote will constitute a forfeiture of the eligibility to vote for that issue.

5.5.3 Requirement for constituting a quorum

In order for the annual meeting to be decisive, it is required that a majority of the members on the voting list cast a vote (yes, no or abstain).

5.5.4 Simple majority

When nothing else is specified, annual meeting decisions are made by simple majority, that is, more people vote yes than no. Those who abstain from voting on an issue are not included in the simple majority calculation.

5.5.5 Anonymity

All elections and referenda conducted at a General Meeting may be open unless any member opposes it.

5.5.6 Digital voting

Digital voting can be used and voting may take place both before and during the annual meeting.

5.5.7 Use of ballots

Normally all elections and referenda are conducted either by postal ballot or ballot. Digital voting takes place without a ballot paper.

Elections or referenda at a General Meeting may however be conducted by vote by show of hands or similar, unless any member opposes it and the circumstances permit it.

5.5.8 Ballot contents and design for elections

The names of all candidates validly nominated for uncontested or contested offices shall be placed on the ballot, provided that they are members in good standing at the time.

The ballot form shall list the candidates for each office in order determined by lot by the Election Committee. With each ballot form there shall be included the necessary voting instructions, a biography of each candidate and his or her campaign statement, the maximum length of which shall have been determined and published by the Committee. The Committee shall show on the ballot form those candidates who are running jointly as a team.

5.5.9 Ballot contents and design for referenda

Proponents and opponents shall be given reasonable opportunity to state their position and no recommendation on how to vote shall appear on the ballot form.

5.5.10 Ballot distribution

Ballot forms may be mailed directly to the members, or included as part of a national publication which reaches all constituent voters. This shall take place minimum four (4) weeks before the General Meeting.

5.5.11 Use of election ballots at General Meetings

Election ballots shall be identical to the postal ballots that have been distributed to the membership.

5.5.12 Reception of postal ballots before the General Meeting

The Election Committee must receive votes by postal ballot no later than one week before the General Meeting. The postal votes are kept unopened until the beginning of the annual meeting.

Members having voted by postal ballot, that decide to vote at the General Meeting, are responsible for informing the Election Committee before the meeting is declared open. Their postal ballots will then be destroyed, and their postal ballot votes become void.

5.6 Counting of votes

5.6.1 Responsibility

The Election Committee is responsible for appointing an independent body (which may include members of the Election Committee) to receive, count and certify results of the voting.

5.6.2 Results of postal voting

The Election Committee is responsible for keeping this information available only to them and may not reveal information about the results of the postal voting until the moment of counting of votes for each individual referendum.

5.6.3 Single Transferable Vote

This principal ensures that in order to win, a candidate requires a majority of the votes cast in the election, no just the largest number. Voters mark ballots by assigning ranks to candidates according to preference. If no majority is achieved, the candidate with the lowest number of votes is eliminated

and the second choice on the ballots with their candidate as the primary choice is distributed to the remaining candidates. This is continued until a candidate achieves a majority of the votes cast. In case the total number of votes is equal, the candidate with the highest number of primary votes is elected. In case of the number of primary votes is equal as well, the candidate with the highest number of secondary votes is elected, etc. If two or more candidates end up with exactly the same number of votes in all categories, the election is declared a tie. The Election Committee, taking advice from the candidates in question, will then decide whether to draw a winner, or hold another election for the relevant office.

5.6.4 Balloting observers

Each candidate or group of candidates on the ballot may designate a representative to observe the counting of the votes.

5.6.5 Certification and notification

The Election Committee shall cause notification to be published to the Board, the Editor, the office of Mensa International and all the candidates of the number of votes cast for each candidate no later than two (2) weeks after the General Meeting.

6 Local groups

6.1 Establishment of local groups.

For the establishment of local groups of members living or working within reasonable prox- imity to each other, the guidelines passed as a referendum at the General Meeting are to be used.

6.2 Association with the Board

The Board shall monitor the actions of the Local Groups according to the guidelines mentioned above, and may approve Local Group Bylaws on the basis of the guidelines. Local Groups will act as the local representatives of the Board and they shall co-operate with the Board.

6.3 Economy

Provided that the requirements specified in the guidelines of the General Meeting of Mensa Sweden are followed, the Local Groups are entitled to financial support from Mensa Sweden, mainly in the form of a certain percentage of testing revenue or membership dues.

6.4 Geographic area

Bylaws for all local groups shall give the board of Mensa Sweden the right to by a decision change the geographic area for the local group. Local group that is affected by such a decision shall on its following annual meeting change its bylaws according to the decision.

The Board of Mensa Sweden is only allowed to make such a decision when a new local group is formed or if a local group is dissolved, unless all concerned local groups agree to the decision. The decision shall be published in the journal for Mensa Sweden.

6.5 Changes in bylaws for a local group.

Changes in bylaws for a local group are not valid until they are approved by the board of Mensa Sweden. The decision shall be published in the journal for Mensa Sweden.

7 Dispute resolution

7.1 Disputes between members of Mensa Sweden

Members having a dispute with Mensa, or with another member, arising out of Mensa-related activities, shall exhaust all avenues of settlement and redress within the society before taking the dispute to external authorities. Deliberate failure to do so may be considered an act inimical to Mensa.

7.2 Sanctions

7.2.1 Suspension

Sanctions may be imposed by the Board on any member who commits an act inimical to Mensa, provided that a fair and impartial inquiry of the case, where the member concerned is given the opportunity to be heard, has been implemented. Such sanctions may include suspension of or removal from office for a specified time, or suspension of membership for a specified time. For decision on expulsion from the association and decision on suspension when the suspension of the member concerned amounts to more than twelve months, the provisions of 7.2.2 shall be complied with.

7.2.2 Expulsion and longer suspensions

Before the Board is allowed to decide that a member shall be expelled or suspended for longer than a total of 12 calendar months, a special inquiry according to 7.2.3 shall be made. Decisions about expulsion or suspension for more than 12 months in total requires a 2/3-majority vote. Decisions according to this paragraph may be reconsidered by a following board, if formal errors in the handling of the matter are revealed or if significant new information turns up. Before a new decision is made, a new special inquiry according to 7.2.3 shall be made. Decisions according to this paragraph shall be reported to the next annual meeting.

7.2.3 Special inquiry

A special inquiry committee shall be appointed when required by 7.2.2. The committee shall consist of 2-5 members. Board members, the ombudsman and the association's auditor may not be part of the committee.

The Board shall propose committee members to the member concerned in the possible sanctions case. If the member believes that any of the persons proposed is unsuitable for the task, the Board shall consider appointing another member instead, or reduce the number of members of the committee, and introduce the new proposal to the member concerned. If the board and the member in question still do not agree on the committee constitution the question of the composition of the group shall be referred to the Ombudsman, who independently decides the issue. The same procedure shall apply if a member of the committee resigns before the inquiry is completed.

It is the responsibility of the committee to investigate what happened and discuss whether it’s an act inimical to Mensa. The inquiry shall result in a comprehensive report, including a recommendation, for the board to decide on, and also sent to the member concerned. The committee shall ensure that the report does not disclose more personal information than necessary. The inquiry committee shall also provide the board with answers to questions regarding the report and its basis.

The special inquiry shall be carried out as urgently as the issue allows and be completed no later than six months after the inquiry started. After request from the inquiry committee and approval of the Board and the member concerned, inquiry time can be extended by a total of six months.

7.2.4 Appeal of decision about expulsion or longer suspension.

Decisions under 7.2.2 can be appealed by the member concerned by the decision. Such appeal shall be submitted to the Board within three months after the decision was announced. The Board shall ensure that the appeal is handled at the next annual meeting after the appeal is received where it is possible to address the issue.

In the background information given before the annual meeting about the issue the affected member's reasons for appeal shall be included as well as the summary report from the inquiry committee. The member concerned is suspended until the time of the general meeting that will try his/her appeal.

7.2.5 Publication

The Board of Mensa Sweden may, without the consent of the person in question, inform persons outside of Mensa about the suspension or expulsion from office and/or of the membership, including the fact that this person is no longer a member in good standing.

7.2.6 Address an expulsion again

If an expulsion has already been addressed by an annual meeting, a motion by the Board or a petition that has been signed by at least 50 members in good standing of Mensa Sweden is needed for an annual meeting to address the expulsion case again.

7.3 Settlement by Duel

If all parties involved in a dispute agree to resolve the dispute by duel, a water pistol duel is to be held. After the duel, the dispute is to be considered settled and no further sanctions will be imposed. Regulations of the water pistol duel are to be specified by the board in a separate document. No member can be forced to resolve a dispute by duel or sanctioned for not agreeing to duel.

7.4 Ombudsman

The Ombudsman is the primary office for solving conflicts within Mensa Sweden.

7.5 Responsibility of the Board

Should the Ombudsman be unable to resolve a conflict, or should there not be an elected Ombudsman, the Board may refer the conflict to the International Ombudsman, or appoint an arbitrator acceptable to all involved parties.

8 Amendments

8.1 Amendment procedure

8.1.1 Basic requirement

These Bylaws may be amended at the General Meeting, when the amendment is passed as a referendum with a 2/3 majority of the votes. Any approved amendments for the bylaws are valid from the conclusion of the General Meeting.

8.1.2 Proposal procedure

Proposals for amendments may be made by the Board, or through a petition that has been signed by at least 50 members in good standing of Mensa Sweden.

8.2 Amendment approval

Proposed amendments must be submitted to The Constitution Review Committee of the IBD for approval before such amendments are submitted to the membership for vote.

8.3 Compliance with IBD requirements

When any amendments to these Bylaws are proposed, they shall also be brought into compliance with all mandatory requirements adopted by the IBD, insofar as these do not conflict with the laws of Sweden.

8.4 Compliance between Swedish and English versions

When any amendments to these Bylaws are proposed, both versions shall be brought into compliance with each other, ensuring that the content is as identical as possible. (Note that if there is any difference between the Swedish and English versions, the Swedish version has priority.)

9 Dissolution of Mensa Sweden

9.1 Voluntary dissolution

9.1.1 Basic requirement

Mensa Sweden can be dissolved by decisions made at two consecutive General Meetings, one of which must be an Annual General Meeting. The dissolution decision must be passed with a 2/3-majority vote.

9.1.2 Procedure for motions of dissolution

Proposals for voluntary dissolution may be made by the Board or through a written petition that has been signed by at least 10% of the members of Mensa Sweden in good standing.

9.2 Liquidation

If dissolution is decided, the General Meeting appoints the liquidators. Any surplus assets of the association shall be placed at the disposal of Mensa International.

9.3 Involuntary dissolution

9.3.1 Basic requirement

Mensa Sweden will be involuntarily dissolved upon action of the International Board of Directors derecognising it as a National Mensa.

9.3.2 Powers and duties of the Board

In the event of such involuntary dissolution, the Board shall have the following powers and duties:

- Payment of any existing obligations from the funds of Mensa Sweden.
- Transfer of all testing and membership records to Mensa International Limited.
- Reassignment of all legal rights to the Mensa name and logo to Mensa International Limited
- Distribution of the remaining funds and assets as provided above.